

RELEASE AGREEMENT
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Background

Plaintiff filed, on 5/19/26, a Motion to enter judgment pursuant to stipulation, along with a Declaration. The papers were served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint and Summons in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,723.57, less any credits for payments received, plus costs.

Defendant made total payments in the amount of \$5,760; costs, per Declaration, are \$360; thus, the judgment amount should be \$2,323.57.

The Stipulation was filed on 6/23/26.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,323.57.

Plaintiff to file order on Motion, as well as submit Judgment.

14. 9:00 AM CASE NUMBER: N26-0757
CASE NAME: QUALITY LOAN SERVICE CORP. VS. ALL CLAIMANTS TO SURPLUS FUNDS
PETITION FOR RELEASE OF SURPLUS FUNDS
FILED BY: QUALITY LOAN SERVICE CORP.
TENTATIVE RULING:

After a review of the Petition, this court finds that Petitioner has notified all relevant parties under Section 2924j of the Civil Code, of the existence of surplus funds, and of the Petition to deposit the funds, as well as of the date of the hearing.

Moreover, this court finds, under Section 2924j(b) and (c) of the Civil Code, that Petitioner has exercised due diligence to determine the priority of written claims to the trustee's sale surplus proceeds, and has determined that there is a conflict between potential claimants.

Disposition

Petitioner's request to deposit the surplus funds with the Clerk of the Superior Court is granted.

Before doing this, however, Petitioner must provide notice as instructed under Subdivision (d) of CC 2924j.

15. 9:00 AM CASE NUMBER: N26-0972

CASE NAME: MOHAMMED NAAR VS. EMPLOYMENT DEVELOPMENT DEPARTMENT 255-EDD-PFL-DEPARTMENT

PETITION FOR BOARD DECISION

FILED BY: NAAR, MOHAMMED

TENTATIVE RULING:

Petitioner has filed what appears to be Petition for Writ of Mandate against the Appeals Board.

However, there is no indication that Petitioner has provided any notice of this Petition or hearing to the Respondent.

Disposition

This Hearing will be continued to 10/22/26, at 10 a.m.

Petitioner is to serve Respondent with copy of the filed Petition, as well as notify Respondent of the 10/22/26 hearing.